

Court No. - 37

Case :- WRIT - C No. - 38453 of 2017

Petitioner :- Namepal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kamla Singh, Vijay Shanker Singh

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Heard learned counsel for the petitioner.

The petitioner has come up against the recovery proceedings initiated on account of electricity dues for a commercial connection stated to be for running a Crusher. The allegation is of theft.

Learned counsel submits that the petitioner was given a new connection after the permanent disconnection of the earlier connection. In such circumstances without there being any such possible consumption of electricity there is no occasion for the respondents to have either assessed the petitioner for consumption or proceeded for any prosecution.

Learned counsel submits that the petitioner had appeared before the Magistrate to surrender in the event there was any first information report lodged against him, but since there was no first information report registered, no such criminal proceedings as against the said alleged theft are pending.

Learned counsel for the respondent-Electricity Department Sri Anshul Singhal holding brief of Sri Chandan Agarwal states that since the petitioner appears to have not filed any objection to the provisional assessment, the same would have been accepted as a final assessment and consequently the petitioner is under a default hence the recovery proceedings initiated do not suffer from any infirmity.

The petitioner himself has quoted the provisions of Sections 126 and 127 of the U.P. Electricity Act, 2003 read with the provisions of the U.P. Electricity Supply Code, 2005. The petitioner has the remedy of filing any application for any such billing dispute either before the Executive Engineer or in the event any final assessment has been made, the remedy of the petitioner lies in filing an appeal before the higher authority in terms of Section 127 of the U.P. Electricity Act, 2003. In the event the petitioner approaches the competent forums as observed hereinabove within fifteen days from today, the said authority shall proceed to pass appropriate orders in accordance with law.

Writ petition is disposed off with the said directions.

Order Date :- 24.8.2017

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